

[*197] as the * legal estate would then [have] become vested in the Crown. However, where the heir took not strictly in that character, but as special occupant, he might have exercised his discretion in refusing or accepting the estate (*a*).

3. **Disclaimer should be without delay.**—If the party named as trustee intend to decline the administration of the trust, he ought to execute a disclaimer without delay. There is no rule, however, that a trustee must execute a disclaimer within any particular time. Thus it will operate after an interval of sixteen years, if the interval can be so explained as to rebut the presumption of his having accepted the trust (*b*). If a person know of the trust and lie by for a long period, it is for a jury, or the Court sitting as a jury, to say whether such acquiescence was not because he had assented to the office (*c*).

4. **Form of the disclaimer.**—The disclaimer should be by deed, for a deed is clear evidence and admits of no ambiguity (*d*); and the instrument should be a *disclaimer* and not a *conveyance*, for the latter, as it transmits the estate, has been held to imply a previous acceptance of the office (*e*); for a person cannot be allowed to disclaim the office and accept the estate (*f*). However Lord Eldon expressed his opinion, which seems the common sense view, that where the intention is disclaimer, the instrument ought to receive that construction, though it be a conveyance in form (*g*).

(*a*) Creagh v. Blood, 3 Jones & Lat. 170.

(*b*) Doe v. Harris, 16 M. & W. 517; and see Noble v. Meymott, 14 Beav. 471.

(*c*) See Doe v. Harris, 16 M. & W. 522; Paddon v. Richardson, 7 De G. M. & G. 563; James v. Frearson, 1 Y. & C. C. C. 370.

(*d*) Stacey v. Elph, 1 M. & K. 199, per Sir J. Leach.

(*e*) Crewe v. Dicken, 4 Ves. 97;

and see Urch v. Walker, 3 M. & C. 702.

(*f*) *Re Martinez' Trusts*; 22 L. T. N. S. 403.

(*g*) Nicloson v. Wordsworth, 2 Sw. 372. In *Attorney-General v. Doyley*, 2 Eq. Ca. Ab. 194, the trustee who declined to act was directed to *convey*, and the same decree was made in *Hussey v. Markham*, Rep. t. Finch, 258. In *Sharp v. Sharp*, 2 B. & A. 405, it was held the trustees had not

E. R. R. Co. 107 Mass. 1; if all renounce, the estate rests in the heirs or representatives; *Dunning v. Ocean Bank*, 6 Laus. 206; but if a part disclaim, it must be known so as to determine upon the validity of the acts of the others; *Moir v. Brown*, 14 Barb. 39.